

H C J D A 38.

JUDGMENT SHEET
IN THE LAHORE HIGH COURT
LAHORE
(JUDICIAL DEPARTMENT)

Cr. Appeal No.22958 of 2022
Muhammad Mujahid v. The State, etc.

JUDGMENT

Date of hearing **04.03.2026**

Appellant by: Mr. Naseem Ullah Khan Niazi,
Advocate.

State by: Miss Noshe Malik, Deputy
Prosecutor General.

Complainant by: Mr. Irfan Sabir Goraya,
Advocate.

MUHAMMAD WAHEED KHAN, J.- Through this appeal, appellant, Muhammad Mujahid, has challenged his convictions and sentences awarded to him by the learned Addl. Sessions Judge, Khushab, vide judgment dated 24.03.2022, in case FIR No.215 dated 30.11.2019, registered u/s 302/364-A/376/404 PPC at Police Station Noor Pur, District Khushab, whereby he was convicted and sentenced as under:-

- (i) **Under Section 302(b) PPC** sentenced to **life imprisonment** for committing Qatl-e-Amd of Sadaf Shaheen. He was also directed to pay Rs.2,00,000/- as compensation u/s 544-A Cr.P.C. to the legal heirs of the deceased, which shall be recovered as arrears of land revenue and in default thereof, to further undergo six months simple imprisonment.
- (ii) **Under Section 376(3) PPC** sentenced to **life imprisonment** and fine of Rs.50,000/-, in default thereof, to further undergo six months incarceration.
- (iii) **Under Section 364-A PPC** sentenced to **life imprisonment**.

- (iv) **Under Section 404 PPC** sentenced to three years imprisonment and fine of Rs.25,000/-, in default thereof, to undergo six month incarceration.

All sentences were ordered to run concurrently and benefit u/s 382-B Cr.P.C. was extended to the convict.

2. Brief facts of the case as narrated by complainant Mst. Shaheen Noor Akhtar, in complaint (Ex-PX), on the basis of which formal FIR (Ex-PHH) was registered, are as under;

“That her marriage with Atta Ullah was solemnized about nine years ago while two daughters were born, one of them passed away, whereas the other, namely, Saddaf Shaheen aged 8/9 years was living with her as she had obtained divorce from her husband through court. Furthermore, she filed a suit for recovery of maintenance allowance against Atta Ullah which was decreed for amount of Rs.1,70,000/- and Rs.2,000/- per month but Atta Ullah did not pay any alimony. On 26.11.2019 at about 2:00 p.m., she received a call from Makhoor Elahi on her mobile phone who asked for talking to Sadaf Shaheen. Makhoor Elahi was son-in-law of Atta Ullah and for the reason, he was having his mobile number and on 13.10.2019, he had come to her house as well. On 26.11.2019, she went outside her house for cutting fodder while her daughter Sadaf Shaheen was alone in the house and when she came back at about 3:30 p.m., her daughter was not present there. She searched her daughter but could not find her. Her brother Akhtar Badshah told her that on the day of occurrence at about 2:00 p.m. he had seen Shafi Ullah alongwith two unknown co-accused at Adda of Adhi Kot. She had a doubt/suspicion that Shafi Ullah etc. had abducted her daughter Sadaf Shaheen.”

Initially the FIR was lodged under section 363 PPC against the above said nominated accused, Makhoor Elahi and Shafi Ullah, however, their arrest was held in abeyance. During course of investigation, on 07.12.2019, dead body of minor Sadaf Shaheen, was recovered, on which offences under sections 302/376/364-A/404 PPC were added. Number of people of the locality were investigated and eventually DNA profile of the appellant got matched with the seminal material taken from the person and gameez of the deceased and finally report u/s 173 Cr.P.C. was submitted before the learned trial Court while declaring the appellant as guilty, he was summoned, charge was framed which was denied by him, hence, trial commenced. The prosecution in order to prove its case produced as many as eighteen witnesses. Evidence of last seen was furnished by one Abdul Jabbar (PW-15), complainant Mst. Shaheen Noor Akhtar herself appeared as PW-16 and

her brother Akhtar Badshah appeared as PW-17. Forensic evidence was tendered by Junior Forensic Scientists Kashif Imran (PW-8) and Arslan Anjum (PW-10). Medical evidence was furnished by Dr. Rabia Shaheen (PW-9), who conducted autopsy on the dead body of the deceased. Muhammad Fayyaz SI (PW-18), was the Investigating Officer of the case. The remaining witnesses were of formal in nature and the prosecution after producing certain documents closed its evidence. After completion of prosecution evidence, statement of the appellant was recorded u/s 342 Cr.P.C., in which he denied the allegation leveled against him. He did not opt to appear as his own witness u/s 340 (2) Cr.P.C., however, produced Form-(ب) in his defence. After evaluating prosecution evidence available on record, learned trial Court found the prosecution version correct 'beyond any shadow of doubt' which resulted into conviction and sentence of the appellant in the afore stated terms.

3. In support of the instant appeal, learned counsel for the appellant contends that the case of the prosecution is inherently flawed, hence, fails to inspire confidence; that the FIR was lodged against two accused, Makhoor Elahi and Shafi Ullah, who, later on, were exonerated by the complainant and the appellant was implicated in this case at later stage without any credible evidence as no one had witnessed him while committing the crime and he had been falsely roped in this case by the police; that the only witness of last seen had also failed to depose in clear terms against the appellant, who was declared hostile and even otherwise, the testimonies of the prosecution witnesses were full of contradictions and flaws, hence, cannot be believed to maintain conviction of the appellant that too, in an offence carrying capital punishment; that the impugned judgment is based on surmises and conjectures as material evidence available on record in favour of the appellant has been mis-read by the prosecution; that nothing was recovered from possession of the appellant and lastly prays that since the prosecution has miserably failed to prove its case against the appellant up to hilt, hence, by accepting the instant appeal, he be acquitted of the charge.

4. Conversely, learned Deputy Prosecutor General assisted by learned counsel for the complainant has faithfully defended the impugned judgment by controverting the arguments of learned counsel for the appellant and has contended that the prosecution has ably proved its case against the appellant “beyond reasonable shadow of doubt”; that although no direct evidence was available in this case but the circumstantial evidence adduced by the prosecution fully connects the appellant with the commission of crime, which was duly supported through scientific evidence based on DNA reports tendered by the Punjab Forensic Science Agency (PFSA) and he was found fully involved in commission of a heinous and gruesome act of committing rape and murdering a minor girl having the age of 8/9 years, during the course of investigation and before the learned trial Court; that the other pieces of evidence i.e recoveries and medical evidence also fully implicated him in the crime, hence, he does not deserve any leniency and should be dealt with iron hands, so, in presence of voluminous evidence, conviction and sentence of the appellant should be maintained as he has rightly been adjudged guilty by the learned trial Court and the instant appeal is liable to be dismissed.

5. I have considered the arguments advanced by learned counsel for the parties, learned Law Officer and have gone through the record with their assistance.

6. The crux of arguments advanced by learned counsel for the appellant has been that since no direct evidence connecting the appellant with the alleged crime was available in this case and the prosecutions’ case basically hinges upon the circumstantial evidence in the shape of DNA reports (Ex-PS, Ex-PT & Ex-PU, showing the DNA of the appellant was found matched with certain items/samples sent for forensic analysis by the prosecution), so, this sole evidence relied upon by the prosecution may not be sufficient to connect and hold the appellant, guilty in this case. Record manifests that Mst. Shaheen Noor Akhtar (PW-16), mother of minor, Sadaf Shaheen, aged about 8/9 years, while reporting the incident of missing of her minor

daughter to police, through complaint (Ex-PX), on the basis of which formal FIR was drafted later on, showed her suspicion on two persons, Makhloor Elahi, son-in-law of her previous husband Atta Ullah and one Shafi Ullah, however, their arrest was held in abeyance by the police. During the course of investigation, on 07.12.2019, dead body of minor, Sadaf Shaheen, was recovered, where after, lists of suspects were prepared by the police as no direct evidence viz-a-viz the murder of Sadaf Shaheen, was available and eventually DNA profile of the appellant was got matched with the seminal material obtained from the shirt (قمیض) of Sadaf Shaheen, on which the appellant was formally arrested and on culmination of the investigation, was held guilty and challaned accordingly. To bring home the guilt of the appellant, the prosecution has mainly relied upon the medical evidence comprising the postmortem examination conducted by Dr. Rabia Shaheen (PW-9), DNA reports (Ex-PS, Ex-PT & Ex-PU), last seen evidence comprising the statement of one Abdul Jabbar (PW-15), recovery of weapon of offence i.e. Churri (P3) and recovery of one pair of Softy Chappal belonging to the deceased (P4/1-2), through recovery memo (Ex-PK) and recovery of gold ear rings (P5/1-2), belonging to the deceased through recovery memo (Ex-PL) and these articles were duly recognized by Mst. Shaheen Noor Akhtar (PW-16), mother of the deceased and her brother, Akhtar Badshah (PW-17) through identification memo-فرد شناخت (Ex-PAA). There is no denial of the fact that the main reliance of the prosecution has been on the medical evidence, coupled with the positive DNA reports conclusively, connecting the appellant with the crime. Record goes on to evince that minor Sadaf Shaheen, after being lost from her house, her dead body was firstly seen by one Rafique Ahmad (PW-11) on 07.12.2019 at about 02:00 p.m., which was lying near Eucalyptus trees in Adhi Kot jungle, a deserted place, far away from the populated area, when the said witness was available there for collecting woods. He communicated this information to Muhammad Khan (PW-12), who informed the police through telephone, where after, Muhammad Fayyaz Inspector (PW-18) alongwith other personnel reached at the place of occurrence, secured the dead body of the

minor and prepared identification memo (Ex-PZ) and also got collected the samples from the crime scene with the help of Crime Scene Unit. The District Police Officer, Khushab, constituted three teams i.e. (i) Investigation Team, (ii) Survey Team and (iii) Verification Team for searching the accused in this case. Lists, Ex-P7/1-4, Ex-P8/1-11, Ex-P11/1-7, Ex-P12/1-7 and Ex-P13, of suspects were prepared and eighteen persons (suspects) including appellant, Muhammad Mujahid, were short listed. Samples taken from dead body of minor Sadaf Shaheen, were found matched with the DNA profile of the appellant, where after, certain other incriminating evidence like last seen and some other incriminating material as stated above, were also collected by the investigating team.

7. Dr. Rabia Shaheen (PW-9) conducted autopsy upon the dead body of the deceased on 07.12.2019, who noted the following injuries:-

1. *An ante-mortem incised wound 4 x 1cm, on the left side of neck, 4cm below left ear. Under lined muscle cut and clotted blood around wound.*
2. *An ante-mortem incised wound 6 x 2cm, on the left side of neck, 1cm below from injury No.1. Under lined muscle and main neck vessels of left side or cut and maggots were crawling from the wound. Maggots were crawling on the right side of the ear with bluish clotted blood were present.*
3. *There were vaginal orifice tear 2 x 1cm clotted blood seen around orifice and swabs were taken, secured into sealed parcel and sent for DNA and semen analysis.*

After procuring reports of DNA, final opinion of the Medical Officer (PW-9) was as under:-

“On 27.12.2019 I.O. moved application Ex-PR for the clarification of injury No.3, on which I made my report Ex.PR/1. That the said injury was on vaginal orifice, tear measuring 2 x 1 cm, clotted blood seen around the orifice from where I took swabs. Now PFSA report consisting of two pages bearing serial No.0000640739 and 0000640740 Ex.PS, PFSA consisting of two pages bearing serial No.0000645447 & 0000645448 Ex.PT and PFSA report consisting of four pages bearing serial No.0000642055 to 0000642058 Ex.PU are before me and as per reports of PFSA Lahore seminal material was found on stain section of shalwar and qameez and on piece of skin which was obtained from right thigh of deceased and the same was matched with the DNA profile of Muhammad Mujahid. In my final opinion regarding the sexual assault in the light of this report it is confirmed that Mst. Sadaf Shaheen was subjected to rape by Muhammad Mujahid.”

In this way, it was proved that minor Sadaf Shaheen, was not only subjected to carnal intercourse, by the appellant but was also murdered with sharp edged weapon. As per testimony of Medical Officer (PW-9), injuries No.2 & 3, were found sufficient to cause death in ordinary course of nature due to massive rapid bleeding and shock.

8. To analyze the contention of learned counsel for the appellant to the effect that although DNA reports, conclusively connect the appellant, with the crime but the same evidence (DNA evidence) *per se* is not sufficient to award and maintain conviction of the appellant under the afore referred provision of law (offence u/s 302 PPC). I have gone through the different provisions of law i.e. Articles 59 and 164 of the Qanoon-i-Shahadat Order, 1984 (QSO), Sections 164-B/510 of the Code of Criminal Procedure, 1898 (Cr.P.C.) and Section 9 of Punjab Forensic Science Agency Act, 2007 and various case laws developed upon the subject including cases of “Magan Bihari Lal v. The State of Punjab” (1977(2) SCC 2010), “Murarilal v. State of M.P.” (1980 (1) SCC 704), “SHAH NAWAZ v. THE STATE” (1989 P Cr. L J 621), “DAUBERT v. MERRELL DOW PHARMACEUTICALS, INC” (509 U.S. 579 (1993)), “MUHAMMAD HANIF v. THE STATE” (PLD 1993 Supreme Court 895), “ABDUR REHMAN and another v. THE STATE” (2001 YLR 749), “Alamgir v. State (NCT, Delhi)” (2003 (1) SCC 21), “MUHAMMAD ASLAM and others v. THE STATE and others” (2005 P Cr. L J 1352), “NOOR MUHAMMAD v. THE STATE and another” (2005 SCMR 1958), “ABDUL AHAD v. THE STATE and another” (PLD 2007 Peshawar 83), “Ramesh Chandra Agrawal v. Regency Hospital Ltd. & Ors” (2010 AIR (SC) 806), “Mir FAYAZ AHMED v. THE STATE” (2010 P Cr. L J 1832), “BAHADER KHAN v. THE STATE and another” (2012 P Cr. L J 24), “CHENNADI JALAPATHI REDDY v. BADDAM PRATAPA REDDY (DEAD) THROUGH LEGAL REPRESENTATIVES AND ANOTHER” (2019) 14 Supreme Court Cases 220), “GHULAM HASSAN BEIGH v. MOHAMMAD MAQBOOL MAGREY & ORS.” [2022] 13 S.C.R. 34), “MUHAMMAD HANIF v. The STATE” (2023 SCMR 2016), “ALI HAIDER alias PAPU v. JAMEEL HUSSAIN and others”(PLD 2021 Supreme Court 362), “LUCY LETBY and REX ” [2024] EWCA Crim 748), “Muhammad Nauman Qureshi and others v. The State through Chairman National Accountability Bureau and another” (2025 YLR 2565), “C. Kamalakkannan v. State of Tamil Nadu Rep. by Inspector of Police C.B.C.I.D., Chennai” [2025] 3 S.C.R. 629 : 2025 INSC 309) and “MUHAMMAD RAMZAN and another v. The STATE” (2025 SCMR 1742).

9. There is no denial of the fact that the evidence which has become available because of modern devices being made admissible and later on, through insertion of proviso with Article 164 of QSO, through enactment IV of 2017 dated 16.02.2017, it was enacted that conviction on the basis of modern devices or techniques may be lawful. For ready reference, Article 164 of QSO, is reproduced as under;-

164. Production of evidence that has become available because of modern devices, etc.: *In such cases as the Court may consider appropriate, the Court may allow to be produced any evidence that may have become available because of modern devices or techniques.*

[Provided that conviction on the basis of modern devices or techniques may be lawful]

Then there could be another objection qua the *per se* admissibility of the DNA report as under section 510 Cr.P.C., there is no mention regarding the DNA report. The said provision of law is reproduced as under;-

“Section 510. Report of Chemical Examiner, Serologist, etc. *Any document purporting to be a report, under the hand of any Chemical Examiner or Assistant Chemical Examiner to Government or of the Chief Chemist of the Pakistan Security Printing Corporation Limited or any Serologist, fingerprint expert or fire-arm expert appointed by Government upon any matter or thing duly submitted to him for examination or analysts and report in the course of any proceeding under this Code, may, without calling him as a witness, be used as evidence in any inquiry, trial or other proceeding under this Code:*

Provided that the Court may, if it considers necessary in the interest of justice, summon and examine the person by whom such report has been made.”

However, to overcome this deficiency and non-providing the DNA in section 510 Cr.P.C., which made certain reports based on the expert opinion *per se* admissible, a new legislation in the form of sub-section (3) of section 9 of the Punjab Forensic Science Agency Act, 2007 (**Act**), has been made, which is reproduced as under;-

9. Experts.– (1)

(2) ...

(3) *A person appointed in the Agency as an expert shall be deemed as an expert appointed under section 510 of the Code and a person specially skilled in a forensic material under Article 59 of the Qanun-e-Shahadat Order, 1984 (X of 1984).*

(4)

So, there should be hardly any dispute or skepticism about its *per se* admissibility as this anomaly has been resolved by introducing a special enactment through Sub-section (3) of section 9 of the Act supra. Even otherwise, the august Supreme Court of Pakistan in ***Salman Akram Raja's case***, administration of DNA and preservation of DNA evidence have been made mandatory in rape cases.

10. On encompassing view point of the above referred provisions of law and the cited judgments, it can fairly be gathered that in order to rely on the evidence that has become available through modern devices etc., another supporting/corroboratory evidence is needed to award the conviction and sentence to a culprit. The august Supreme Court of Pakistan in case of "ALI HAIDER alias PAPU, supra, on one hand, declared the DNA evidence as a gold standard to establish the identity of an accused and acknowledged the significant stature of technological and scientific tools, devices and techniques that help provide objective, credible and reliable evidences relating to Court cases, for reaching to judicious decisions and also ordained therein that Courts must be open to developments in forensic science and embrace new techniques and devices to resolve a dispute, provided the said technique and device was well established and widely accepted in the scientific community as a credible and reliable technique or device, but stopping short of designating it as independent or primary evidence, and reckoned the same, one of the strongest corroborative piece of evidence.

11. Before analyzing the other pieces of evidence adduced and relied upon by the prosecution in the case in hand, it might be useful to underline the roles of scientific modern forensic techniques and devices under our Criminal Justice System.

(i) **INTRODUCTION**

Deoxyribonucleic acid (DNA) is considered the strongest biological identifier because it exists in almost every nucleated cell of the human body and remains chemically stable, even when biological material is exposed to heat, dryness, or time. Its double-stranded structure protects genetic

information, allowing forensic scientists to recover DNA from semen, blood, saliva, skin cells, and hair roots long after an incident. Even semen, organs, tissues, teeth, hair, nails, spit, piss and certain other biological fluids are also used as specimen (Lee & Ladd, 2001). Since every individual (except identical twins) has a distinct DNA sequence, this natural uniqueness makes DNA far more reliable than ordinary biological markers such as blood group or protein tests.

(ii) **MECHANISM OF STR IN DNA PROFILING**

The real forensic power of DNA comes from highly variable regions called Short tandem repeat, where short sequences of DNA bases are repeated multiple times. The number of repeats differs from person to person, so scientists examine several STR locations across the genome to create a DNA profile. Because each STR marker is inherited from both parents, combining many loci produces a highly distinctive genetic pattern, almost like a barcode unique to one person. This is why even tiny biological traces from a sexual offence can identify or exclude a suspect with extremely high certainty.

(iii) **SCIENTIFIC PROCESSING MAKES DNA LEGALLY STRONG**

Once a biological sample is collected, laboratories use ‘Polymerase chain reaction’ to amplify very small quantities of DNA into millions of copies. This is especially important in sexual offences where only minute traces of semen or epithelial cells may be present. The amplified fragments are then separated using Capillary electrophoresis, producing measurable peaks that can be directly compared with a suspect's profile. Because this process is standardized and reproducible, courts regard DNA results as objective scientific evidence rather than interpretive opinion.

(iv) **PUBLIC INTEREST OUTWEIGHS PERSONAL PRIVACY IN SERIOUS CRIMINAL CASES**

In offences such as rape, sexual assault, and violent crime, the public interest in identifying offenders and protecting society, often outweighs individual objections regarding genetic testing. DNA profiling helps not only in convicting offenders but also in preventing wrongful accusations by

scientifically excluding, innocent individuals. Since the evidence is based on measurable biological facts rather than testimony alone, courts increasingly consider DNA necessary where justice depends on accurate identification.

(v) **COLLABORATIONS WITH RESEARCH FACILITIES
UNDER STRICTER MONITORING POLICIES**

The reliability of forensic DNA evidence increases when forensic laboratories collaborate with advanced research facilities that follow strict monitoring, accreditation, and quality-control systems. Such collaborations improve sample handling, contamination prevention, validation of STR results, and interpretation of mixed DNA profiles. Strong laboratory governance ensures that DNA evidence presented in court remains scientifically defensible and less vulnerable to procedural challenge.

(vi) **PRESERVED SAMPLES IN DNA REPOSITORIES SAVE
TIME AND REDUCE TEDIOUS INVESTIGATIONS**

Preserving biological samples and DNA profiles in controlled repositories allows investigators to compare new crime-seen evidence with previously stored profiles quickly. This is particularly valuable in serial sexual offences, unidentified suspects, or delayed reporting cases. Stored DNA evidence, reduces the need to restart lengthy investigations because previous biological data can immediately be reanalyzed when new suspects emerge.

However, Pakistan lacks in this well- managed DNA intelligence database. We do not have any consolidated database at the national level, no planning has been laid down to utilize the very technology or to reduce its cost. Certain medical laboratories are maintaining independent storehouses for DNA profiles which are generated in-house. These profiles are of suspects, arrestees and sufferers. Therefore, it appears that the current legislation is not enough to develop a DNA profiling system of intelligence in Pakistan. There is a need for establishment of a dependable legal and scientific infrastructure to fully avail the benefits, associated with this technology.

12. I have also gone through some judgments of foreign jurisdiction qua the status of legal sanctity of DNA report. The Supreme Court of India in case of “Kattavellai @ Devakar v. State of Tamilnadu” ([2025] 7 S.C.R. 984: 2025 INSC 845), has discussed the DNA evidence by affirming its individual value in paragraph No.31 of its judgment by relying upon its earlier case titled as “Anil v. State of Maharashtra” (2014) 4 SCC 69, the Court observed that “DNA profiles have had a tremendous impact on criminal investigation. A DNA profile is valid and reliable. In case of “State of U.P. v. Raj Narain” (2010) 13 SCC 754, the Court accepted DNA results as conclusive proof of identity, provided proper procedure was followed. In case of “Kishan Chand v. State of Haryana” (2013) 2 SCC 502, the Supreme Court acknowledged the decisive role of DNA testing in cases involving sexual assault. In case of “Raghuvir Dessai v. State” (2007 Cri. L 829), the DNA of nails on the head of the accused had the last and clinching piece of evidence which shows that the accused alone committed the rape of the victim. The conviction of the accused, therefore, could not be faulted in the light of overwhelming evidence produced by the prosecution. Again, in case of “Chotu v. State of Rajasthan” (2006 (17) Criminal CC 231) the Court emphasized that DNA Test is almost a full proof method of identifying the culprit. The sophisticated technology makes it possible to obtain conclusive results. In the case of rape with murder, it has been held by the Supreme Court of India that DNA report must be accepted as scientifically accurate & an exact science. Interpreting the provisions of Sections 53 & 53-A Cr.P.C., it has also been held that court cannot substitute its own opinion for that of an expert specially in case of complex subject like DNA profiling in case of “Santosh Kumar Singh Vs. State through CBI” (2010) 9 SCC 747). United Kingdom Court of appeal in case of “Regina v. Jonathan Tsekiri” ([2017] EWCA Crim 40), considered the DNA evidence as sole factor for conviction of an accused. DNA, widely accepted as a reliable method for verifying human identity, especially in criminal investigations within South Africa, is a beacon of reliability in the legal system. Its objectivity and exceptional discriminatory power underscore its

pivotal role, reinforcing its role in supporting accurate and just legal decisions. A striking instance is the recent case before the Supreme Court of Appeal “Tom v. S” (JH Smith, K Ehlers, JS Horne, Pakistan Journal of life & Social Science 23(1) 2025) where the prosecution’s case hinged firmly on DNA evidence with some supporting circumstantial evidence. The appellant, who denied the crime and provided an alibi defence, was found guilty. This case led to a life sentence for rape, with concurrent sentences for additional charges, demonstrating the practical significance of DNA evidence in the legal system.

13. Again advertent to the facts of case in hand, there is hardly any scintilla of doubt in my mind that it was the present appellant, who had committed rape of victim Sadaf Shaheen, which factum has been conclusively proved through the DNA reports (Ex-PS, Ex-PT & Ex-PU) as observed earlier. The machinery of law was set into motion by mother of the victim, namely, Mst. Shaheen Noor Akhtar (PW-16), by showing the suspicion on two persons (Makhoor Elahi & Shafi Ullah), however, the police were reluctant to implicate them in this gruesome, heinous and ghostly offence, associated two hundred suspects in the investigation, they were interviewed extensively, short listed eighteen of them, taken them to Punjab Forensic Science Agency (PFSA), wherein their requisite samples were procured, out of whom, the appellant was identified as the real culprit through the DNA analyses. It is also noteworthy that while procuring the samples from the dead body of the deceased, Dr. Rabia Shaheen (PW-9), had observed all the necessary protocols, made into sealed parcels for DNA analyses, handed over to the lady constable Gulraiz Rana 199/LC (PW-3), who unambiguously deposed before the learned trial Court that after postmortem examination, Medical Officer (PW-9), handed over to her postmortem report, relevant police papers, four sealed boxes of plastic, one sealed parcel containing last worn clothes of the deceased and two sealed envelopes. She (PW-3) alongwith Atta Ullah 22/C made signatures on the receipt and thereafter, the said witness handed over the above said sealed parcels alongwith postmortem report alongwith relevant police papers to

Muhammad Fayyaz SI, who took the same into possession vide recovery memo (Ex-PD), which was attested by her (PW-3) and Atta Ullah 22/C and Investigating Officer of the case also recorded their statements. Similarly, Moharrar of the Police Station concerned, namely, Ansar Hayat 26/MHC (PW-2) also confirmed in his testimony before the learned trial Court that on 07.12.2019 he received four sealed boxes of plastic, two sealed envelopes, one sealed envelope containing clothes of the deceased and seven sealed envelopes which were prepared by crime scene unit, Sargodha, from Muhammad Fayyaz SI, which he kept in Malkhana intact for safe custody and on very next day i.e. 08.12.2019, he handed over above said sealed parcels to Muhammad Fayyaz SI, for onward transmission to the office of Punjab Forensic Science Agency (PFSA) and said Muhammad Fayyaz SI, Investigating Officer of the case, while appearing in the dock as (PW-18) also confirmed all these material qua the receiving and depositing the same in the Malkhana and then its onward transmission to the Punjab Forensic Science Agency (PFSA).

14. So far as the claim of learned counsel for the appellant qua the availability of sole evidence (DNA evidence) in this case is concerned, record reveals otherwise as besides the DNA evidence, the prosecution has relied upon the other pieces of circumstantial evidence, like last seen evidence provided by one Abdul Jabbar (PW-15) and recovery of gold earrings and softy 'Chappal' of the deceased, which she was wearing at the time of incident. As far as the last seen evidence provided by Abdul Jabbar (PW-15) is concerned, record reflects that he turned hostile before the learned trial Court in the following manner;-

"I do not know anything about the occurrence."

However, he was cross examined by the learned prosecutor (ADPP), wherein he denied certain facts, however, in response to certain questions put to him by the learned prosecutor, he admitted certain facts, which are paramount in nature and are reproduced as under;-

"accused Mujahid present in Court met me alongwith 8/9 years old girl wearing yellow colour flower printed clothes and softy chappal in her feet; I

asked Mujahid about his father's health and on query where he was going, Mujahid accused told me that this girl was living in same Mohallah and he was going to drop her to her mother, who was cutting the crops; After that we left that place for our business and on 27.12.2019, when I alongwith Muhammad Imran went to Adhi Kot for Jumma prayer, there was a publication at the gate of mosque regarding missing girl Sadaf Shaheen; when we saw the picture on publication, it was same girl who was with the accused Mujahid on 26.11.2019. "

So, although this witness has turned hostile but even then, he admitted certain facts, which were paramount in nature, thus stood to the test of corroborative evidentiary value in this case, as he not only admitted about the factum of lastly seen, the victim Sadaf Shaheen, in the company of the appellant but also recognized her by seeing her photographs by stating that she was the same girl, who was going with the appellant.

15. Now coming to the evidence of recovery of weapon of offence i.e 'Churri' and other articles i.e. gold ear rings and 'Chappal', which were got recovered by the appellant during the course of investigation through recovery memo (Ex-PK & Ex-PL) and there is no doubt in my mind that the same were recovered from the place, which was in the exclusive knowledge of the appellant. Moreover, ear rings and 'Chappal' belonging to the deceased, have been duly identified by her mother Mst. Shaheen Noor Akhtar (PW-16) and her maternal uncle Akhtar Badshah (PW-17) and in this regard an identification memo-فرد شناخت (Ex-PAA), was also prepared.

16. The Medical Officer (PW-9), had declared injuries No.1 & 2 sustained by the victim, were caused by sharp edged weapon and injury No.3, was suggestive of due to penetration of sexual intercourse and internal injury at the vaginocervical junction and was also suggestive of penetration of sexual intercourse. Injuries No.2 & 3 were found sufficient to cause death due to massive rapid bleeding and shock. After receiving the reports from the Punjab Forensic Science Agency (PFSA), the Investigating Officer of the case sought final opinion from the Medical Officer (PW-9), which has already been referred above. This most important piece of circumstantial evidence i.e. DNA reports, was sufficiently corroborated with other pieces of evidence relied upon by the prosecution like last seen evidence, which was

provided by Abdul Jabbar (PW-15), though turned hostile, recovery of last wearing belonging of the deceased and weapon of offence from the appellant.

17. So, I believe that these pieces of evidence clearly and exclusively connect the appellant with the rape and murder of deceased Sadaf Shaheen. Chain of circumstantial evidence is firm and continuous leaving no margin of hypotheses of innocence of the appellant and this chain of circumstantial evidence adduced by the prosecution also links the dead body of the deceased with the neck of the appellant without any broken chain in it. The prosecution has thus, proved its case against the appellant 'beyond any reasonable doubt'. Even otherwise, I have gone through the observations and findings of the learned trial Court and the same appear to be reasonable in view of the facts and circumstances of the case, therefore, the arguments so raised by learned counsel for the appellant, being devoid of any force, are repelled accordingly. Resultantly, the instant appeal is **dismissed** and the conviction and sentence awarded to the appellant by the learned trial Court are **maintained**. However, all the sentences shall run concurrent and benefit of section 382-B Cr.P.C as awarded by the learned trial Court shall remain intact.

(MUHAMMAD WAHEED KHAN)
JUDGE

*This judgment has been dictated on 04.03.2026,
prepared and signed on 15.04.2026*

Sajid

APPROVED FOR REPORTING

JUDGE